

The Attorney General of California has prepared the following title and summary of the chief purpose and points of the proposed measure:

REQUIRES STATE RESPONSE IF PRESIDENT OF THE UNITED STATES

UNLAWFULLY RETAINS OFFICE BEYOND TWO-TERM LIMIT. INITIATIVE

CONSTITUTIONAL AMENDMENT. Requires the State of California to sue to prevent a President of the United States from remaining in office after two terms in violation of the Twenty-Second Amendment (“No person shall be elected to the office of the President more than twice . . .”). If a court decides that the President has unlawfully remained in office:

- the State of California must stop recognizing the individual as President;
- the Attorney General must take lawful steps to arrest and prosecute the individual; and
- the Legislature must enact laws disqualifying the individual from future state office.

Summary of estimate by Legislative Analyst and Director of Finance of fiscal impact on state and local governments: **Potential increase in one-time state costs, not likely to exceed the low millions of dollars, to address violations of the 22nd Amendment, in years in which such violations are attempted. State costs to create protections for state employees, veterans, and servicemembers who refuse unconstitutional orders. These costs would depend on what protections are adopted. (25-0030A1.)**